

****September 18, 2023****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing has completed, in September 2023, an investigation into the operator NN Life Insurance S.A. and found a violation of the provisions of Article 21 paragraph (3) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with a fine of 4,946.50 lei (equivalent to 1,000 EURO).

The investigation was initiated following a complaint submitted by a data subject who alleged that the operator NN Life Insurance S.A. violated their right to object by sending marketing messages via LinkedIn messaging.

During the investigation, it was found that the operator did not comply with the legal provisions regarding the processing of personal data, as it did not take into account the requests of the complainant, sent via electronic mail, in which they expressed their option not to be contacted with direct marketing messages without their consent.

At the same time, during the investigation, based on Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, the operator was also subject to the corrective measure of adopting appropriate and effective internal procedures for data protection regarding the handling of requests submitted by data subjects under Regulation (EU) 2016/679, ensuring in all cases compliance with applicable provisions regarding the prompt analysis and resolution of these requests, so that the operator ensures that it effectively responds to requests exercising the rights of data subjects, as well as the regular training of the operator's staff.

In this regard, we mention that Article 21 paragraph (3) of Regulation (EU) 2016/679 provides:

""If the data subject objects to processing for the purpose of direct marketing, the personal data shall no longer be processed for that purpose.""

****Legal and Communication Department****

****N.A.S.P.D.C.P****